

BC596896 BC596896

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-22

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Case Number: BC596896 Hearing Date: September 22, 2026 Dept: 512

HEARING DATE: Tues., September 22, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Kavoukjian,
et al. v. Organic America LLC,

et

al.

CASE NUMBER: BC596896

NOTICE: NO

PROCEEDINGS: SECOND

AMENDED MOTION TO AMEND JUDGMENT TO ADD JUDGMENT DEBTOR ALTER EGO

MOVING PARTY: Defendant

Bagrat Ogannes

RESP. PARTY: Plaintiff Armen Kavoukjian

MOTION TO AMEND JUDGMENT

(CCP § 187)

TENTATIVE RULING:

Defendant Bagrat Ogannes' Second

Amended Motion to Amend Judgment to Add Armen Kavoukjian as the Alter

Ego of Greeneden, LLC is DENIED.

Moving party is ordered to
give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC,
rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) NO

OPPOSITION: Filed
on July 27, 2026 ☐ Late ☐ None

REPLY: Filed
on July 31, 2026 ☐ Late ☐ None

ANALYSIS:

I.

Background

On August 20, 2019, an Amended
Judgment was entered in favor of Defendants Tigran Hakobyan, Giorgi
Imnaishvili, and Bagrat Ogannes against Plaintiffs Armen Kavoukjian and
Greeneden, LLC on five causes of action. (8/20/19 Amended Judgment.) Further,
the Court ordered that Defendants were to recover from Plaintiffs costs in the
amount of \$3,427.21, and attorney's fees from Greeneden, LLC in the amount of
\$430,000.00. (8/20/19 Amended Judgment.)

On February 10, 2021, the Second
District Court of Appeal issued a Remittitur; therein, the appellate court
affirmed the Amended Judgment in this action.

On July 19, 2021, Greeneden, LLC filed
Notice of Bankruptcy.

On March 17, 2022, Greeneden, LLC
filed a Notice of Bankruptcy Complete.

On July 26, 2022, Greeneden, LLC filed
Notice of Liquidation of Greeneden, LLC.

On May 20, 2026, Ogannes filed the
instant Motion to Amend Judgment to Add Armen Kavoukjian as the Alter Ego of
Greeneden, LLC (the "Motion").

On June 1, 2026, Ogannes filed an
Amended Motion.

On July 27, 2026, Kavoukjian filed an
Opposition.

On July 31, 2026, Ogannes filed a
Reply.

On August 7, 2026, the Court continued
the hearing on the Amended Motion due to defective notice of hearing. (8/7/26
Order.)

On August 14, 2026, Ogannes filed and
served Notice of Ruling.

On August 28, 2026, Ogannes filed a
Second Amended Motion.

On September 9, 2026, Kavoukjian filed
an Opposition.

II.

Procedural
Issues

As an initial matter, the Court notes
the Second Amended Motion and notice of hearing were filed and served by
electronic transmission less than 16 court days and two calendar days prior to

the instant hearing. (See Code Civ. Proc., § 1005.) Thus, the Second Amended Motion was untimely filed and served.

However, an Opposition on the merits was filed and served prior to the instant hearing date, albeit one day late, and includes the correct hearing date. As such, the Court exercises its discretion to find service and notice satisfactory and proceeds to address the Second Amended Motion on the merits.

III.

Legal

Standard & Discussion

In the Second Amended Motion, Ogannes moves to add Kavoukjian as a judgment debtor to the amended judgment in this action on the grounds that Kavoukjian is the alter ego of Greeneden.

In Opposition, Kavoukjian contends that Ogannes has no right to amend the amended judgment as Ogannes' rights were assigned to Richard Foster, Esq.; Kavoukjian was a separate and independent entity from Greeneden and thus there is no unity of interest between the two; and there is no injustice to Ogannes or other defendants from the denial of the instant Motion.

'Under section 187, the trial court is authorized to amend a judgment to add additional judgment debtors.... As a general rule, "a court may amend its judgment at any time so that the judgment will properly designate the real defendants." ... Judgments may be amended to add additional judgment debtors on the ground that a person or entity is the alter ego of the original judgment debtor.... "Amendment of a judgment to add an alter ego 'is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant. ..." '

(Greenspan v. LADT, LLC

(2010) 191 Cal.App.4th 486, 508; see Highland Springs Conference & Training Center v. City of Banning (2016) 244 Cal.App.4th 267, 280 ["Section 187 grants every court the power and authority to carry its jurisdiction into effect. [Citation.] This includes the authority to amend a judgment to add an alter ego of an original judgment debtor, and thereby make the

additional judgment debtor liable on the judgment. [Citation.].”).)

“Section 187 contemplates amending a judgment by noticed motion.” (Highland Springs Conference & Training Center, *supra*, 244 Cal.App.4th at p. 280, citing Wells Fargo Bank, N.A. v. Weinberg (2014) 227 Cal.App.4th 1, 9, Code Civ. Proc., §§ 1003, 1004, 1005, subd. (a)(13).) “The court is not required to hold an evidentiary hearing on a motion to amend a judgment, but may rule on the motion based solely on declarations and other written evidence.” (Ibid.)

“To prevail on the motion, the judgment creditor must show, by a preponderance of the evidence, that ‘(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone.’ [Citation.].) The decision to grant or deny the motion lies within the sound discretion of the trial court ... and will not be disturbed on appeal if there is a legal basis for the decision and substantial evidence supports it.” (Ibid.)

In support of the Second Amended Motion, Ogannes presents evidence of a declaration from Ogannes’ counsel and various exhibits, including discovery responses, court orders, the judgment in this matter, and the underlying agreement between the parties. (Second Amended Motion, Foster Decl., Exhs. 15, 17, 48, 50, 56, 72, 75, 82, 83.)

However, the Court finds the evidence presented is insufficient to meet Ogannes’ burden of proof. While the Court acknowledges that Kavoukjian was a party in the underlying litigation and was represented at the proceedings, the Court does not find Ogannes has demonstrated Kavoukjian has such a unity of interest and ownership with Greeneden that the separate personalities of the entity and owners no longer exist. Indeed, at most, Ogannes’ evidence shows Kavoukjian is an investor in and third-party beneficiary of GreenEden. (See e.g., Second Amended Motion, Foster Decl., Exh. 56.) More substantially, Kavoukjian’s declaration and exhibits assert articles of organization, an adopted operating agreement, a certificate of interest, prepared minutes, separate checking and

savings accounts, an accounting system, a filed Statement of Information, and federal and state tax returns — with no commingling. Furthermore, ownership resided in a family trust, not in Kavoukjian individually, introducing a separation. (See Opposition to Motion, Kavoukjian Decl., Exs. 1-8.) This evidence rebuts the commingling and disregard-of-formalities factors. (See Associated Vendors, Inc. v. Oakland Meat Co. (1962) 210 Cal.App. 2d 825., unity of interest “is primarily one for the trial court and is not a question of law”.)

To the extent Ogannes’ counsel attempts to make attestations in the declaration regarding Greeneden and Kavoukjian’s financial relationship or that “Kavoukjian personally controlled every aspect of the underlying litigation” (see Second Amended Motion, Foster Decl., p. 8), the Court does not find the declaration by counsel has adequate foundation for statements regarding Kavoukjian and Greeneden’s financial affairs and thus does not serve as adequate evidence to support the Second Amended Motion. Thus, the Court finds that Ogannes has not met his burden of proof by a preponderance of the evidence under the totality of the circumstances.

Thus,
the Second Amended Motion is DENIED.

IV.

Conclusion
& Order

For the foregoing reasons, Defendant Bagrat Ogannes’ Second Amended Motion to Amend Judgment to Add Armen Kavoukjian as the Alter Ego of Greeneden, LLC is DENIED.

Moving party is ordered to
give notice.